

Tentative Rulings for August 11, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG01486 *NICBYTE, LLC v. Community West Bank* is continued to Wednesday, September 9, 2026, at 3:30 p.m. in Department 501.

25CECG02578 *John Caldwell v. CSAA Insurance Exchange* is continued to Wednesday, September 9, 2026, at 3:30 p.m. in Department 501.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

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(41)

Tentative Ruling

Re: **James Locke v. Miss Kitty's Lounge**
Superior Court Case No. 23CECG00276

Hearing Date: August 11, 2026 (Dept. 501)

Motion: By Defendant GW Building Partnership for Summary
Judgment or Summary Adjudication

Tentative Ruling:

To grant summary judgment in favor of defendant GW Building Partnership as to plaintiff's entire complaint against it. The court directs GW Building Partnership to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

In his complaint filed on January 2, 2023, plaintiff James Locke (Plaintiff) alleges he was a patron and invitee of defendant Miss Kitty's Lounge on January 30, 2021, when he was physically attacked and beaten by "Defendants," identified as Miss Kitty's Lounge, Catherine Hill, GW Building Partnership (GW, the landlord), and Does 1 to 100. Plaintiff amended his complaint on August 18, 2023, to add Shane Leonard Smith as Doe 1, and again on December 4, 2025, to add Timothy Gilbert Lazalde as Doe 2, and Willow Syann Delgadohachee as Doe 3. Plaintiff alleges the following counts against all defendants: (1) assault; (2) battery; (3) negligence; (4) negligent hiring, supervision, training; (5) negligent inadequate security; (6) premises liability; (7) intentional infliction of emotional distress; (8) false imprisonment; and (9) negligent infliction of emotional distress. GW now moves for summary judgment, or in the alternative, summary adjudication as to each cause of action.

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter

of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

Procedural History

On April 3, 2026, GW filed its pending motion, which was set for hearing on June 30, 2026. Plaintiff filed his opposition on June 10, 2026, which consisted primarily of a request for a continuance supported by counsel's three-paragraph declaration offered to authenticate two exhibits—the police report for the incident, and a rough draft of the deposition transcript of Samuel Lucido, GW's managing partner and person most knowledgeable. After GW filed its reply and objections on June 18, 2026, Plaintiff filed a certified copy of Mr. Lucido's deposition transcript on June 24, 2026, and an amended separate statement, with references to the certified deposition transcript. Thereafter the court continued the June 30, 2026, hearing date to August 11, 2026.

The court now considers GW's motion for summary judgment, made on the ground that Plaintiff cannot establish a necessary element of each cause of action against GW. Resolving all doubts in favor of Plaintiff as the party opposing the summary judgment motion, the court exercises its discretion to consider Plaintiff's late-filed evidence.

Undisputed Facts

GW presents the following undisputed facts: Plaintiff claims he was on the premises near Miss Kitty's Lounge on January 30, 2021, when he was physically attacked, resulting in serious physical injuries and other injuries. (Fact Nos. 1, 2.) Plaintiff claims he was punched in the eye by the doorman, then the doorman and others began to "beat him up," followed him outside, and continued to beat him up. (Fact Nos. 3, 4.) When GW filed the pending motion on April 3, 2026, Plaintiff, according to his discovery responses, could not identify any of the individuals involved in the altercation or any individual who was on the premises on the date of the incident. (Fact No. 5.)

GW owns the subject premises and "was the landlord to Shane Smith and Catherine Smith dba Miss Kitty's Lounge at the time of the incident." (Fact No. 6.)¹ After GW filed an unlawful detainer complaint to recover possession of the premises, the parties entered into a stipulated judgment whereby Miss Kitty's agreed to vacate the premises by February 11, 2021. GW filed the unlawful detainer action because Miss Kitty's failed to meet the rent payment obligations, not due to any known incidents of physical altercations on the premises. (Fact No. 11.) Miss Kitty's had control and possession of the premises on January 30, 2021, the date of the incident. (Fact No. 12.) GW's relationship with Miss Kitty's was that of landlord and tenant—GW had no involvement in the management and operation of Miss Kitty's Lounge. (Fact Nos. 19-22.) Before the incident occurred, GW had no knowledge of any physical altercations at Miss Kitty's Lounge. (Fact No. 23.) "GW . . . has no affiliation with or knowledge concerning any of the individuals who may have been involved in the alleged incident." (Fact No. 24.)

First Cause of Action for Assault

To establish Plaintiff's first cause of action for assault, Plaintiff must prove the following essential elements:

(1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he] was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm.

(*So v. Shin* (2013) 212 Cal.App.4th 652, 668–669.)

Plaintiff does not identify GW as a person who physically assaulted him. He claims he was assaulted by a doorman and "a bunch of other people" at Miss Kitty's Lounge. (Fact No. 3.) Plaintiff does not dispute that GW has no affiliation with or knowledge of the individuals involved in the assault. (Fact No. 24.) His complaint includes a boilerplate agency allegation that "each Defendant was, and now is, the agent, servant employee, joint venturer, guarantor, alter ego, and/or representative of each of the other Defendants herein." (Comp., ¶ 7.) GW meets its initial burden of production and persuasion to show Plaintiff has no evidence to establish that GW acted as the agent of any the persons who assaulted Plaintiff. GW had no role in the management or operation of Miss Kitty's Lounge and no affiliation with the assailants. (Fact Nos. 19-24.) The burden then shifts to Plaintiff to raise a triable issue of material fact as to his first cause of action for assault.

A party opposing summary judgment must present admissible evidence, including "declarations, admissions, answers to interrogatories, deposition, and matters of which judicial notice" must or may "be taken." (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) Plaintiff admits Fact Numbers 19

¹ All references to "Miss Kitty's" are to Shane Smith and Catherine Smith dba Miss Kitty's Lounge.

through 24 are undisputed. Plaintiff submits no authority to oppose GW's motion apart from his request for a continuance, which the court now considers below.

Request for Continuance

While Plaintiff has requested a continuance of the summary judgment hearing in order to conduct further discovery, Plaintiff has not shown good cause to grant a continuance. If the party opposing the motion for summary judgment shows by declaration that essential evidence "may exist but cannot, for reasons stated, be presented," the court shall deny the motion, or continue it for a reasonable period, or "make any other order as may be just." (Code Civ. Proc., § 437c, subd. (h).) This statute had been interpreted to make a continuance requested by a proper and timely declaration "virtually mandated." (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.)

Even where a declaration does not meet the statutory standard, such that continuance is not mandatory, the request is still subject to the court's discretion. (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 716 [determination that declaration did not meet the statutory standard did not end the analysis of whether continuance should have been granted; discretionary consideration still required]; *Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643 [even with insufficient declaration, court must determine whether there is good cause for continuance].) In most instances, the court's discretion will be exercised in favor of granting a continuance, given the harsh consequences of losing a summary judgment/adjudication motion. (*Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633-634 ["[I]nterests at stake are too high to sanction the denial of a continuance without good reason."].)

Nevertheless, where there is no good cause for a continuance, the court may exercise its discretion to deny the request based on a conclusory declaration. For example, in *Combs v. Skyriver Communications, Inc.* (2008) 159 Cal.App.4th 1242, the court explained the opposition must be accompanied by an affidavit or declaration that: (1) identifies additional facts that are essential to oppose the motion; (2) gives a reason to believe such facts exist; and (3) states the reasons why additional time is needed. (*Id.* at p. 1270 [trial court did not err in denying continuance].) "The purpose of the affidavit required by section 437c, subdivision (h) is to inform the court of outstanding discovery which is necessary to resist the summary judgment motion." (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325 [finding no abuse of discretion in trial court's denial of continuance].)

GW cites *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, where the trial court properly exercised its discretion to deny a continuance of the hearing on the defendant's summary judgment motion based on an insufficient declaration that failed to explain:

[W]hy appellants believed the facts they sought through the depositions actually existed, why these facts were essential to oppose the summary judgment motion, and why [defendant's representative] Munoz's deposition had not been taken in the two years since the complaint was filed. The declaration simply concluded that "additional information and

testimony is still required in order to adequately respond to Defendant's Motion." This is insufficient.

(*Id.* at p. 420.)

GW points out the supporting declaration of Plaintiff's counsel identifies no facts to support the continuance request. In the declaration Plaintiff's counsel simply purports to authenticate two exhibits—the police report and the rough draft of Mr. Lucido's deposition transcript. The declaration fails to show how the discovery remaining to be completed would uncover facts related to agency or any other potential claim required to oppose GW's motion. Also, declaration fails to address why the depositions have not been taken in the three-and-a-half years since Plaintiff filed his complaint. Plaintiff identifies no new facts to hold GW liable for assault or any of his other causes of action. Therefore, the court finds there is no good cause for a continuance and exercises its discretion to deny the request.² The court finds the first cause of action for assault fails as a matter of law because Plaintiff cannot prove the essential first element of intent and there is no basis to impose vicarious liability.

Second Cause of Action for Battery

To establish Plaintiff's second cause of action for battery, Plaintiff must prove the following essential elements:

(1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching.

(*So v. Shin, supra*, 212 Cal.App.4th at p. 669.)

GW meets its initial burden to show the battery cause of action lacks merit for the same reasons at the assault claim. GW did not touch Plaintiff or cause Plaintiff to be touched. GW did not hire, employ, or exercise control over any of the persons involved in the incident, nor did it act as the agent of any involved person. Therefore, the burden shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. The court finds the second cause of action for battery fails as a matter of law because Plaintiff cannot prove the essential first element of touching and there is no basis to impose vicarious liability.

Third Cause of Action for Negligence

GW correctly summarizes the elements Plaintiff must prove to establish GW's negligence as follows:

² Where relevant, the court exercises its discretion to consider the late-filed certified deposition transcript of Mr. Lucido and the police report.

To prove negligence, the plaintiff must show: 1) that the defendant owed him a legal duty to use due care, 2) that the defendant breached that duty, and 3) that the breach was a proximate cause of plaintiff's injuries, and 4) resulting damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Where a negligence claim is based upon premises liability, the plaintiff must also show the defendant had possession of the premises and the attendant right to control and manage the premises. (*Kesner v. Superior Court (Pneumo Abex, LLC)* (2016) 1 Cal.5th 1132, 1158.) The elements of negligence and premises liability are otherwise the same. (*Id.*) The existence of the first element, whether the defendant owed plaintiff a legal duty, is a question of law for the court. (*Ky. Fried Chicken of Cal. v. Superior Court (Brown)* (1997) 14 Cal.4th 814, 819.)

As first established in *Rowland v. Christian* (1968) 69 Cal.2d 108, analysis of a landowner's duty encompasses several factors, including "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (*Rowland*, 69 Cal.2d at 113.) Foreseeability of harm is the chief factor in this analysis. (*Laabs v. So. Cal. Edison Co.* (2009) 175 Cal.App.4th 1260, 1272).

(Memo., pp. 5:14-6:2.)

GW contends Plaintiff's third cause of action for negligence has no merit because GW did not owe a legal duty to Plaintiff. "Duty, being a question of law, is particularly amenable to resolution by summary judgment." (*Parsons v. Crown Disposal Co.* (1997) 15 Cal.4th 456, 465.)

GW meets its initial burden of production and persuasion that it owed no duty under the facts of this case with the following analysis:

"Historically, the public policy of this state generally has precluded a landlord's liability for injuries to his tenant or his tenant's invitees from a dangerous condition which comes into existence after the tenant has taken possession. This is true even though by the exercise of reasonable diligence the landlord might have discovered the condition." (*Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, 510.) Where a landlord has relinquished possessory interest in the property, their duty to third parties injured on the property is attenuated as compared to the tenant who has a possessory interest. (*Mata v. Mata* (2003) 105 Cal.App.4th 1121, 1131, disapproved on other grounds by *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 247-250.) "Thus, before liability may be thrust on a landlord for a third party's injury due to a dangerous condition on the land, the plaintiff must show that the landlord had actual knowledge of the dangerous condition in question, plus the right and ability to cure the condition.["]

(*Mata*, 105 Cal.App.4th at 1131-1132 (citing *Leakes v. Shamoun* (1986) 187 Cal.App.3d 772, 776.)

Mata v. Mata involved a bar patron who shot and killed one patron and injured two others. (*Mata*, 105 Cal.App.4th at 1124-1125, 1127.) The defendants were the landlord and the tenant, the proprietor of the bar. (*Id.*) The landlord did not inspect the property during the time he rented it to the tenant. (*Id.* at 1125.) The landlord had “heard of fights” at the bar on a couple of occasions but never talked to the tenant about security, never asked him what he was doing to stop fights, and never warned him that the lease would be cancelled if he heard about other fights. (*Id.*) The trial court granted summary judgment in the landlord's favor and the court of appeals affirmed. (*Id.* at 1125, 1127.) The court of appeals was doubtful that the landlord having “heard of fights” on a couple of occasions was sufficient to constitute actual notice, but even if it did and the fights constituted a “dangerous condition,” that condition had to do with the way the tenant managed the bar, not with the land itself, and the landlord, the court emphasized, had no role in managing the bar. (*Id.* at 1132.)

In this case, as in *Mata*, GW leased their premises to Shane Smith and Catherine Smith dba Miss Kitty's Lounge who operated a bar. GW had no role in managing the bar and had no role in hiring, training, or supervising any personnel who worked at the bar. GW had no knowledge of any prior altercations at the bar. Their tenants had sole possession and control of the premises until February 11, 2021 (the subject incident occurred on January 30, 2021), at which time the tenants had agreed to vacate the premises. Applying the *Rowland* factors, GW anticipates Plaintiff will argue the incident as alleged in the complaint was foreseeable because it is foreseeable that physical altercations will occur at a bar where people are consuming alcohol. That is not enough, as *Mata* makes clear. GW was simply the lessor of the premises with no management role and had no prior knowledge of any previous altercations. There is no connection between GW's conduct, simply leasing the premises to tenants who ran the bar, and the alleged incident, and no moral blame for such conduct, where the tenants had full control over management and operation of the bar.

The undisputed material facts establish that GW did not owe Plaintiff a duty of care. Because Plaintiff cannot establish this essential element, his claim fails as a matter of law.

(Memo., pp. 6:3-7:11, italics added.)³

³In *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, which involved a bar proprietor's duty, the plaintiff had dismissed the landlord as a defendant at the outset of trial. On appeal, the California Supreme Court addressed some of the language and analysis of *Mata* that it found to be overbroad and potentially misleading, relating to the duties of a bar proprietor. The high court reiterated its previous conclusion about the high degree of foreseeability required to impose a duty to provide security upon a landlord:

The court finds GW meets its initial burden to show GW did not owe Plaintiff a duty of care, based on the allegations of Plaintiff's complaint and the undisputed facts. The burden then shifts to Plaintiff to raise a triable issue of material fact.

As the party opposing summary judgment, Plaintiff must present admissible evidence, including "declarations, admissions, answers to interrogatories, deposition, and matters of which judicial notice" must or may "be taken." (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) In his separate statement, Plaintiff purports to dispute Fact Nos. 5, 12, 15, 16, 17, and 18.

In response to Fact No. 5 ("Plaintiff cannot identify any of the individuals involved in the altercation or any individual who was on the premises on the date of the incident"), Plaintiff responds that he subsequently identified some of the assailants (Does 1, 2, and 3) and "has now filed suit against them." (Resp. to Fact No. 5.) The subsequent identity of the alleged assailants, without evidence of a connection to GW, is immaterial to the issue of duty.

Although Plaintiff purports to dispute Fact No. 15 (Plaintiff has no evidence to show the incident was foreseeable), Fact No. 16 (Plaintiff has no evidence to show GW could control the individuals involved in the incident), and Fact No. 17 (Plaintiff has no evidence to show GW could have taken measures to prevent the incident), Plaintiff submits argument only. He offers no admissible evidence to dispute any of these facts.

Plaintiff purports to dispute Fact No. 12 (Miss Kitty's had control and possession of the premises) and Fact No. 18 (Plaintiff has no evidence to show any act or omission by GW was a substantial factor in causing the incident) by reference to Mr. Lucido's deposition at page 23, lines 19 to 24, where the cited testimony fails to raise a material dispute and provides:

Q. [By Mr. Garcia] Can you briefly describe for me what did you consider to be the common areas of the subject property back in January of 2021?

A. [By Mr. Lucido] The garbage area, the parking lot, the landscaping, the ingress and egress to the property.

Q. And for purposes of my question, they're all

[A] high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state. [Citations]."

(*Id.* at p. 238, citing *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678–679, italics original, footnotes omitted.)

The court has exercised its discretion to consider the entire late-filed certified copy of Mr. Lucido's deposition transcript. As GW notes in its reply, Mr. Lucido testified that GW maintained the physical condition of the parking lot, but provided no security, nor did it "control" the parking lot:

Q. [By Mr. Garcia] And what did that maintenance consist of on a weekly basis?

A. [By Mr. Lucido] We have a landscaping company that goes in and makes sure there's no debris in the parking lots. We inspect if asphalt is appropriate. We don't have asphalt that's worn out. We make sure that bushes are pruned back so that people walking by aren't bothered by them.

Q. What about as to security?

A. No.

Q. Did you have any security in place back in January of 2021 as to the common areas?

A. No.

Q. You didn't have any security companies on premises or that would patrol the subject property on a regular basis?

A. No.

(Lucido depo., pp. 25:21-26:12 [certified transcript filed 6/22/26].) Based on the undisputed facts, the court finds GW's duty, as the landlord, did not include the duty to provide security. (*Delgado v. Trax Bar & Grill*, *supra*, 36 Cal.4th at p. 238 [high degree of foreseeability required to find landlord's duty of care includes hiring of security guards].)

Plaintiff cites no authority to establish that GW owes a duty of care to Plaintiff based on the facts alleged in his complaint. It is undisputed that the tenant, Miss Kitty's, had sole possession and control of the premises at the time of the incident. (Fact No. 12.) Plaintiff submits no facts to establish vicarious liability. And Plaintiff cites no evidence to show GW had knowledge of any prior altercations at Miss Kitty's Lounge. In fact, Mr. Lucido's deposition testimony confirms that he had no knowledge about complaints from anyone regarding Miss Kitty's Lounge, and the first time he learned of the incident was when Plaintiff served GW with the complaint. (E.g., Lucido depo., p. 32:1-4; pp. 48:19-50:4 [certified transcript filed 6/22/26].)⁴

In sum, the court finds GW meets its initial burden to show Plaintiff cannot prove the essential element that GW owed Plaintiff a duty, which is a question of law for the

⁴ Furthermore, in light of the undisputed fact that Miss Kitty's was lawfully in possession of the premises until the date agreed upon to vacate the premises (February 11, 2021 [Fact No. 10]), and Mr. Lucido's testimony that Miss Kitty's Lounge should not have been open on the date of the incident (Lucido depo., pp. 46:21-47:15), Plaintiff fails to suggest what other action GW could have taken to prevent the incident, apart from providing security, which the landlord was not required to provide here. The police report includes notes from an officer's conversation with the owner of Miss Kitty's Lounge, who allegedly stated "that Willow [the owner's daughter] was suppose[d] to be packing up the bar for their pending eviction and that the bar should not be open." (Garcia decl., ex. 1 [police rpt., nrtv., p. 2 of 3].)

court. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the third cause of action for negligence fails as a matter of law.

Fourth Cause of Action for Negligent Hiring, Supervision, and Training

The first element Plaintiff must prove to establish is fourth cause of action for negligent hiring, supervision, and training is that the defendant hired the employee. (*Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1187-1188.) GW meets its initial burden to show Plaintiff has no evidence to establish that GW had any role in hiring, supervising, or training any employee of Miss Kitty's. GW acted as nothing more than the landlord. (Fact Nos. 19-22.)

The court finds GW meets its burden to show Plaintiff cannot prove the essential element of hiring any employee of Miss Kitty's. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the fourth cause of action for negligent hiring, supervision, and training fails as a matter of law.

Fifth Cause of Action for Negligent Inadequate Security

Plaintiff fails to supply any authority to rebut GW's statement that it is unaware of any authority establishing an independent cause of action for "negligent inadequate security," nor is the court aware of any such authority. The court finds the fifth cause of action fails for the same reasons as the third cause of action for negligence.

Sixth Cause of Action for Premises Liability

The elements of a negligence claim and a premises liability claim are the same. (*Kesner v. Superior Court (Pneumo Abex, LLC)*, *supra*, 1 Cal.5th at p. 1158.) Furthermore, the court finds the sixth cause of action fails for the same reasons as the third cause of action for negligence.

Seventh Cause of Action for Intentional Infliction of Emotional Distress

GW contends Plaintiff cannot establish intentional infliction of emotional distress because no facts exist to support a finding that GW's conduct was extreme and outrageous. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001 [elements of cause of action include conduct so extreme as to exceed all bounds usually tolerated in civilized community].) The court finds GW meets its initial burden to show it engaged in no conduct directed toward Plaintiff, extreme and outrageous, or otherwise.

The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the seventh cause of action for intentional infliction of emotional distress fails as a matter of law.

Eighth Cause of Action for False Imprisonment

The first element of false imprisonment requires Plaintiff to prove the nonconsensual, intentional confinement of his person. (*Scofield v. Critical Air Medicine*,

Inc. (1996) 45 Cal.App.4th 990, 1001.) The eighth cause of action as to GW fails for the same reason as the others. No individuals involved in the altercation with Plaintiff were employees, contractors, or agents of GW.

Ninth Cause of Action for Negligent Infliction of Emotional Distress

"[T]here is no independent tort of negligent infliction of emotional distress." (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) The tort is a species of negligence, which requires the traditional elements of duty, breach of duty, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) The court finds the ninth cause of action fails for the same reasons as the third cause of action for negligence.

Evidentiary Objections

The court has liberally construed Plaintiff's submitted declaration and considered the two attached exhibits without ruling on GW's evidentiary objections. The court now declines to rule on GW's objections because none are material to the disposition of Defendant's motion. (Code Civ. Proc., § 437c, subd. (g).)

Conclusion

In conclusion, the court finds GW meets its burden to show Plaintiff cannot prove at least one essential element of each of the nine causes of action alleged against GW. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court grants GW's motion for summary judgment against Plaintiff.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

Tentative Ruling

Pelayo v. Nations Roof West, LLC
Superior Court Case No. 23CECG01236

August 11, 2026 (Dept. 501)

Report by Plaintiff Pursuant to Code of Civil Procedure Section 384, Subdivision (b)

Tentative Ruling:

To approve the report by the class settlement administrator. To direct class counsel to submit, within five days, an updated amended order granting final approval of the settlement and entering judgment which accounts for the disposition of all funds. In the future though, funds from uncashed checks should not be distributed until authorized by the court. (See Code Civ. Proc., § 384, subd. (b) ["After the report is received, the court shall amend the judgment *to direct the defendant to pay* the sum of the unpaid residue or unclaimed or abandoned class member funds ..."], emphasis added.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

(48)

Tentative Ruling

Campos v. Singh et al.

Superior Court Case No. 25CECG01235

Hearing Date: August 11, 2026 (Dept. 501)

Motion: By Defendants and Cross-Complainants Baljeet Singh, Jagat Shakya, and Gurjeet Singh for Stakeholder Discharge, and Order to Deposit Funds

Tentative Ruling:

To deny, without prejudice. (Code Civ. Proc., §§ 386, 386.5.)

Explanation:

“When a person may be subject to conflicting claims for money or property, the person may bring an interpleader action to compel the claimants to litigate their claims among themselves.” (*City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1122.)

Code of Civil Procedure section 386, subdivision (b), applies to “[a]ny person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability.” These entities “may either file a verified cross-complaint in interpleader, admitting that it has no interest in the money or property claimed, or in only a portion thereof, and alleging that all or such portion is demanded by parties to such” or “may bring an action against the claimants to compel them to interplead and litigate their several claims.” (*Ibid.*) In either case the entity may “apply to the court upon notice to such parties for an order to deliver such money or property or such portion thereof to such person as the court shall direct.” (*Ibid.*) The deposit of the disputed portion of the money with the clerk of the court cuts off the right to further interest or damages for the retention of the funds. (Code Civ. Proc., § 386, subd. (c).)

The true test of suitability for interpleader is the stakeholder's disavowal of interest in the property sought to be interpleaded, coupled with the perceived ability of the court to resolve the entire controversy as to entitlement to that property without need for the stakeholder to be a party to the suit. (*Pacific Loan Management Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1489–1490.)

Defendants and cross-complainants, Baljeet Singh, Gurjeet Singh, and Jagat Shakya (collectively “Defendants”) filed the instant interpleader on June 29, 2026. With this motion, Defendants seek an order of discharge following its deposit of \$30,000 with the clerk of the court. Defendant also moves under Code of Civil Procedure section 386.5, to discharge the stakeholder Defendants from liability and dismissing them from the action upon depositing the \$30,000 with the clerk of the court.

Here, Defendants did not comply with the procedural requirements under Code of Civil Procedure section 386.5. In support of the motion, Defendants' counsel submits his declaration with each Defendants' declaration attached. Neither counsel's declaration, nor any of Defendants' declarations, submit that the Defendants are neutral stakeholders with no personal claim to the disputed funds as required under Code of Civil Procedure section 386.5. Also, the stated policy limit appears to be inconsistent with the policy documents provided. Defendants state that the personal injury policy limit per occurrence is \$30,000 and cites to the attachment to counsel's declaration, Exhibit A, in support. Upon reviewing the 50 pages of documents, the court was unable verify that at the time of the incident Defendants' personal injury policy limit was \$30,000. Because the declarations fail to state that Defendants are merely stakeholders and the amount to deposit is inconsistent with the evidence, the procedural requirements for an interpleader have not been met.

Further, Defendants do not appear to be mere stakeholders. The Complaint filed by Jesus Alejandro Campos, Karina Marroquin-Ramirez, and Benjamin Jacob Benavides include a negligence cause of action against Baljeet Singh as the driver and Jagat Shakya and Gurjeet Singh as the owners of the vehicle that allegedly caused the vehicle collision. The Complaint filed by Sukhvinder Singh also includes a negligence cause of action against Defendants. Defendants do not state by way of argument or declaration how the case would be able to proceed in Defendants absence where it is alleged that they are directly involved in the incident that gave rise to the action. As such, Defendants are not mere stakeholders and the instant interpleader may not be granted.

The court finds that Defendants failed to demonstrate that they are mere stakeholders, and that the interpleader is procedurally defective. The motion to order the interpleader and discharge Defendants from liability for the funds is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Alexandra Seifert v. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: August 11, 2026 (Dept. 501)

Motions: Plaintiff Alexandra Seifert's Motion to Compel Further
Discovery and Sanctions

Tentative Ruling:

To grant Plaintiff's motion to compel further responses from defendant Paul Leon Michaelides to Form Interrogatories, Nos., 2.11, 2.12, 2.13, 12.2, 12.3, and 12.6 and 14.1

To grant Plaintiff's motion to compel further responses from defendant Paul L. Michaelides, D.D.S., M.Sc.D., Inc. to Production of Documents, Nos. 1-7, modified as applicable.

Defendants Paul Leon Michaelides and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. shall provide further verified responses without objection, to plaintiff within 30 days of service of the order by the clerk.

To deny Plaintiff's motion to compel further responses to Special Interrogatories, Nos. 1-14 and Form Interrogatories, No. 4.1 and 14.1.

To deny defendants' request for sanctions.

Explanation:

Plaintiff Alexandra Seifert ("Seifert" or "plaintiff") files this motion to compel further responses from defendants, Paul Leon Michaelides ("Michaelides") and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants.") In particular, Seifert seeks to compel further to Seifert's Special Interrogatories, Set One and Form Interrogatories from Michaelides, and to compel further for Request for Production, Set One from DDS.

Seifert initially filed her complaint against defendants arising from a visit to Dr. Michaelides' dental office on August 15, 2022 when COVID-19 restrictions were in place including a mask mandate for healthcare settings, where Seifert eventually left the premises, and not necessarily through her own volition. ("Incident.")

Combination of Motions

As a preliminary matter, defendants argue that Seifert's combination of three discovery motions against two defendants into one motion is improper and accordingly, Seifert's motions should be denied. (Defendants' Opposition, pg. 5:1-4.)

The only authority defendants cite is a secondary source, which does not state that such motions must automatically be denied.

Combining motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal. App. 4th 457, 460.) Nonetheless, filing fees are owed for each motion. Here, this issue is moot considering Seifert has a fee waiver. (Seifert June 29, 2026 Decl., ¶10.) Furthermore, the combination of these motions has no effect on the substance of these motions.

Defendants' Objections

Defendants' objections to all purported references to defendants' responses to Seifert's discovery and all purported references to Seifert's Form Interrogatories, Set One, are overruled. Seifert filed a supplemental declaration on June 29, 2026, providing the discovery in question, in compliance with California Rule of Court 3.1306, subdivision (c).

Standard to Compel Further Responses to Interrogatories and Requests for Production

A party may move for an order compelling further responses to interrogatories on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The Civil Procedure Code instructs the responding party that: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220)

"Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) "If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." (*Id.* at p. 782.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

With respect to the production of documents, a party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)

For all of the motions at issue, California Rules of Court, rule 3.1345 subdivision (c)(2) requires the separate statement to include the text of each response, answer, or objection, and any further responses or answers. The separate statement is supposed to provide all the information necessary to understand each discovery request and all the responses to it that are at issue. This burden “is met simply by a fact-specific showing of relevance.” (*TBG Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Here, the Court finds that the requirements under California Rules of Court, rule 3.1345 have been met.

Special Interrogatories

Here, plaintiff seeks to compel further responses to Special Interrogatories, Nos., 1 through 15.

Special Interrogatories Nos. 1-4

Special Interrogatories 1 through 4 pertain to the legal authority obligating defendants to impose masking requirements and take plaintiff's vital signs, as of August 15, 2022. Seifert moves to compel further responses arguing that the responses are incomplete and evasive. Michaelides' responses to these interrogatories are that the legal authorities are equally available to plaintiff, under Code of Civil Procedure section 2030.230.

The answer is complete. Plaintiff has access to the same legal authority and Michaelides states he was relying on the California Department of Health requirements that were current as of August 15, 2022. Accordingly, Seifert's motion is denied.

Special Interrogatories Nos. 5, 12, 14

Special Interrogatories 5, 12 and 14 ask Michaelides to identify specific individuals. Defendants provided specific names. Seifert moves to compel further on the grounds the responses are incomplete as the responses do not provide the individual's roles, job titles, and contact information, in accordance with Code of Civil Procedure section 2030.220, subdivision (a).

Code of Civil Procedure section 2030.220, subdivision (a) provides that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.”

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusory answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.)

Here, defendants specifically provided names sought by plaintiff. Plaintiff's special interrogatories did not seek individual's roles, job titles, and contact information. Accordingly, the motion is denied. As set forth below, should the information be requested later, roles, job titles must be provided. If counsel agrees to facilitate contact with current employees, that is all that need be provided. If they are no longer so employed then the last known telephone number must be provided.

Special Interrogatory No. 6

Special Interrogatory 6 asks Michaelides detailed questions pertaining to Michaelides physical or mental capabilities, and the effects on Michaelides, thereafter:

Special Interrogatory 6

Describe in detail all facts, including the chain of events, that cause you to lose your ability - meaning you are no longer physically or mentally capable or are otherwise impaired - to see patients without first obtaining their vital signs.

Response to Special Interrogatory 6

Objection on the grounds the interrogatory is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. No contention is being made that I am physically or mentally incapable of seeing a patient without their vital signs having been taken.

Seifert moves to compel further asserting Michaelides' response is incomplete. Here, Michaelides directly answered Seifert's question. Accordingly, the motion is denied.

Special Interrogatory No. 7

Special Interrogatory 7 asks Michaelides to describe the "grave danger" that Seifert presented for not being masked during the Covid pandemic. Seifert moves to compel further pertaining to Special Interrogatory, no. 7, contending that the response is "evasive" because Michaelides "... provides a narrative description of what allegedly occurred at the incident." (Seifert's moving papers, pg. 9:7-17.)

"The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general. (Citation omitted.) (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

Seifert falls far short of her mark in demonstrating that Michaelides' response was "evasive." During the telephone conversation between defendants' attorney, and Seifert, Seifert contended that the response was "improper" because it was a "narrative", was "odd", "reads like a book" and that it was just "obvious" the response was improper. (Gibson Decl., ¶15, Ex. 1. See also Seifert's Separate Statement in Support of Motion to Compel Further, Special Interrogatory, no. 7.) An answer in narrative form does not deflect from the content of the answer provided. Accordingly, the motion is denied.

Special Interrogatories Nos. 8, 9

Special Interrogatories 8 and 9 ask Michaelides what Seifert's verbally abusive "exact verbiage" during the Incident. Seifert moves to compel further arguing that defendant's answers are evasive and incomplete.

Michaelides simply stated *without objection* that he does not know the "exact verbiage" that was used by Seifert as he was not present at the time, and stated who was there. Here, Michaelides provides a comprehensive answer to Seifert's special interrogatories. Accordingly, Seifert's motion is denied.

Special Interrogatory No. 10

Special Interrogatory 10 asks for all law enforcement reference numbers Michaelides' staff used with respect to Seifert's conduct. Seifert moves to compel further because the response is evasive and incomplete. Michaelides stated he is "not aware of a law enforcement reference number." Here, Michaelides' answer is sufficient. Accordingly, Seifert's motion is denied.

Special Interrogatories 11, 13, 15

Special Interrogatories 11, 13 and 15 ask Michaelides' to provide details about Seifert's threatening conduct at the time of the incident which caused her eviction from DDS' place of business. Seifert moves to compel further because the responses are evasive and incomplete. Michaelides provided sufficient answers to Seifert's special interrogatories, and states explicitly what he does not know. Accordingly, Seifert's motion is denied.

Form Interrogatories

Here, plaintiff seeks to compel further responses to Form Interrogatories, Nos., 2.11, 2.12, 2.13, 4.1, 12.2, 12.3, 12.6, and 14.1.

Form Interrogatory No. 2.11

This interrogatory seeks the name, address, phone number and duties of who Michaelides worked for. Michaelides only provided his employer's name. Seifert seeks to compel further because the response is incomplete. Michaelides did not object. Accordingly, Seifert's motion is granted.

Form Interrogatory Nos. 2.12, 2.13

These interrogatories seek information whether Michaelides or anyone with respect to the Incident suffered any emotional or mental disabilities, or took any substances, such as drugs or alcohol at the time of the incident. Seifert seeks to compel further on the basis that Michaelides' answers are incomplete. Michaelides only answered on behalf of himself. If he has no knowledge, he must so state.

Accordingly, the motion is granted.

Form Interrogatory No. 4.1

Seifert seeks to compel further to Form Interrogatory 4.1 regarding Michaelides insurance coverage. Here, Michaelides provided all relevant information. Accordingly, the motion is denied.

Form Interrogatories Nos. 12.2, 12.3 12.6

Seifert moves to compel further with respect to Form Interrogatories 12.2, 12.3 and 12.6, which pertain to whether Michaelides or anyone on behalf of Michaelides interviewed anyone concerning the Incident, or has any independent reports. Michaelides asserts privilege.

"If an objection is based on a claim of privilege, the particular privilege invoked shall be stated." (Code Civ. Proc., § 2031.240, subd. (b)(2).) "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1).)

Here, the requests do not pertain to the contents of any alleged reports made, but only the existence of whether any alleged reports exist. Accordingly, the motion is granted.

Form Interrogatory No. 14.1

Form Interrogatory 14.1 concerns the legal authority obligating defendants to impose masking requirements. Defendant's response to this interrogatory is that "Plaintiff refused to comply with the California Department of Public Health indoor masking requirement for healthcare settings in effect at the time." Michaelides objects under Code of Civil Procedure section 2030.230.

For the same reasons discussed above, Seifert is requesting the legal authorities defendant relied on. He did so. Therefore the motion is denied.

Compel Further Responses to Production of Documents

Here, plaintiff seeks to compel further responses to Request for Production of Documents 1 through 7.

Request for Production of Documents Nos. 1-3,5,6

In Request for Production of Documents, numbers 1-3, 5 and 6, Seifert requests all documents related to the Incident in question. Defendants agreed to provide Exhibit 1 with request to Request for Production of Document, Number 1, by agreeing to provide “the responsive” documents, while objecting to providing other documents based on privilege.

Where Seifert argues that production is insufficient and incomplete, defendants argue they provided Exhibit 1. The crux of this dispute appears to be whether Exhibit 1 encompasses everything that defendants have in their possession, or whether defendants have made a determination of what is responsive on their own.

A motion to compel further responses to a document request is proper where the moving party believes the statement of compliance is incomplete, or a representation of inability to comply is inadequate, evasive and/or an objection is without merit or too general. (Code Civ. Proc., § 2031.310 (a).) The motion must show good cause to justify the discovery and must be supported by a meet and confer declaration. (*Id.* at subd. (b).)

The scope of discovery is liberally construed in favor of disclosure “as a matter of right unless statutory or public policy considerations clearly prohibit it.” (*Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal. 2d 355, 377-378.) The broad scope of permissible discovery includes “any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”. (Code Civ. Proc., § 2017.010.)

Here, defendants’ response to Request for Production of Documents, number 1 provides that DDS “agree[] to produce **the responsive documents** in its possession, custody, or control. Please refer to Exhibit 1.” (Seifert’s Supplemental Decl., Exhibit F, Response to Request for Production No. 1, emphasis added.) Each of the other requests, where applicable, references Exhibit 1. The Court finds that such statements satisfy the requirements under Code of Civil Procedure section 2031.220.

With respect to objections related to privilege, the crux of the controversy is that defendants have not produced a privilege log. “It is elementary in civil discovery that if documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection “shall” be supplied. (Code Civ. Proc., § 2031.240.) This feature of the Discovery Act prevents secret positions from being taken to justify the withholding of documents claimed to be secret.” (*Roche v. Hyde* (2020) 51 Cal. App. 5th 757, 814.)

“When confronted with a deficient privilege log that fails to provide the necessary information to rule on attorney-client and work product objections, a trial court may order the responding party to provide a further privilege log that includes the necessary information to rule on those objections. . .” (*Catalina Island Yacht Club v. Superior Ct.* (2015) 242 Cal. App. 4th 1116, 1120 (“Catalina”).) “A privilege log must identify with

particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. (§ 2031.240, subds. (b) & (c); *Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130.) The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted." (*Catalina*, supra, 242 Cal. App. 4th at 1130.)

Based on the foregoing, Seifert's motion is granted in part. Defendants are to provide a privilege log.

Request for Production of Document No. 4

Seifert moves to compel further with respect "[a]ll documents containing identification information for staff involved in plaintiff's visit, such as names, contact information and job description." Defendants assert privacy rights for not disclosing this information.

Under *Hill v. Nat'l Collegiate Athletic Assn.* (1994) 7 Cal. 4th 1, 35-37, the party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (Id.) The party seeking the information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (Id. at 37-40.)

California's Constitutional right to privacy protects against the unwarranted, compelled disclosure of various private or sensitive information regarding one's personal life. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) This includes employment records. (See *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 526; and *El Dorado Savings & Loan Assn. v. Superior Court* (1987) 190 Cal.App.3d 342, 345.)

However, any privacy rights must be balanced against the need for discovery. (See *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250-1251.) Request for Production number 4 seeks only the names of the individuals, contact information and job descriptions of staff involved. (See *Puerto*, supra, 158 Cal.App.4th at p. 1254 [stating the contact information for potential witnesses is 'basic civil discovery' and 'neither unduly personal nor overly intrusive,' and that remains so regardless of the number of potential witnesses at issue.] Accordingly, the Court grants plaintiff's motion to compel further with respect to Request for Production number 4, but only as to names and job description so long as counsel for defendant agrees to contact the staff involved should Plaintiff wish to depose them. If counsel does not have the information or does not agree to contact the involved staff, then last known telephone numbers must be provided.

Request for Production of Document No. 7

Seifert moves to compel further with respect to documents pertaining to this dental office's policies regarding ADA Disabilities Accommodations policies, procedures and training materials as defendants' responses are deficient and incomplete. Defendants argue that plaintiff's request for the requested documents is seeking the current policies rather than as of the date of the incident, on August 15, 2022.

The Court grants Seifert's motion in part, where defendants' responses and production of documents shall be limited to those as of the date of the incident, on August 15, 2022.

Sanctions

Defendants seek \$5,000 in sanctions against Seifert with respect to these motions. The court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

Under these circumstances, the Court declines to award sanctions. The Court finds that Seifert acted with substantial justification, and made reasonable arguments in support of her position. No sanctions are appropriate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: **Thomas v. Toor**
Superior Court Case No. 26CU02035

Hearing Date: August 11, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant the petition and sign the proposed orders. No appearances necessary.

The court sets a status conference for Thursday, November 5, 2026, at 3:30 p.m., in Department 501, for confirmation of deposit of claimant's funds into the blocked account. If petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)